

Brussels, July 19 – During the last plenary session of the European Data Protection Board, the European Data Protection Board issued an informational document for individuals and entities transferring data to the USA. The aim of this document is to provide concise and objective information about the impact of the Adequacy Decision on transfers to the USA, the legal protection mechanisms available under the Data Protection Framework (DPF), and the new legal protection mechanism in the area of national security.

The Chair of the European Data Protection Board, Anu Talus, stated: “The European Commission adopted the Data Protection Framework (DPF) following the opinion of the European Data Protection Board from February 2023. This is an important decision recognizing that personal data can now be transferred from the European Economic Area to the United States without additional conditions. It is crucial that individuals are aware of their rights and that organizations understand their obligations, which the European Data Protection Board explains in the informational note. The European Data Protection Board will continue to pay special attention to the proper implementation of this new instrument and we look forward to contributing to the first review of the Data Protection Instrument next year.”

The informational note clarifies that transfers based on adequacy decisions do not require supplementary measures. For transfers to the USA that are not included on the "Data Protection Framework List," appropriate protective measures are required, such as standard data protection clauses or binding corporate rules. In this regard, the European Data Protection Board emphasizes that all protective measures introduced by the US government in the area of national security (including the legal protection mechanism) apply to all data transferred to the USA, regardless of the transfer tool used.

Furthermore, the informational note states that in the area of national security, individuals from the EU can lodge a complaint with their national data protection authority to utilize the new legal protection mechanism, regardless of the tool used for transferring personal data to the USA.

During the plenary session, representatives of the European Commission also held a presentation on the Data Protection Framework and the changes that followed the opinion of the European Data Protection Board. Additionally, the European Data Protection Board adopted a statement on the first review of the Adequacy Decision for Japan. The statement primarily focuses on assessing the commercial aspects of the Adequacy Decision for Japan, as the Japanese legal framework has undergone certain changes in this area since the adoption of the adequacy decision, leading to further alignment with the General Data Protection Regulation. This includes the expansion of the right to object to processing, strengthening the obligation to notify the Japanese data protection authority and individuals about data breaches, and expanding the scope of the Japanese Act on the Protection of Personal Information (APPI) so that it no longer excludes personal data that is "deleted" within six months.

The European Data Protection Board simultaneously considers that there are certain areas that the European Commission should monitor more closely, particularly regarding the new category of "pseudonymized" personal data in Japanese law and the use of consent in situations of power imbalance. The European Data Protection Board therefore welcomes the commitment of the European Commission to closely monitor these issues.

In general, the European Data Protection Board agrees with the European Commission's assessment of the review and welcomes the Commission's proposal to move to a four-year review cycle.

Following the plenary session, by decision of the members of the European Data Protection Board, a representative of the Data Protection Agency was appointed as the coordinator of the EDPB expert subgroup on cooperation. The focus of this expert subgroup's work is on the cooperation and consistency mechanism in accordance with the General Data Protection Regulation, procedural issues related to Article 56 of the General Data Protection Regulation, and Chapter VII (Sections 1 and 2) of the General Data Protection Regulation, cooperation cases where the organization does not have a business establishment in the EU, and international mutual assistance and other cooperation tools in

the implementation of the General Data Protection Regulation outside the EU (Article 50 of the General Data Protection Regulation).